

1.

CASE #	CASE NAME	HEARING NAME
CVME2607420	CORTES VS FCA US LLC	PLAINTIFF'S DEMURRER TO ANSWER

Tentative Ruling: Demurrer to Answer is overruled.

This is a lemon law case. Plaintiff, Kristopher Cortes, alleges that on 6/5/25, he acquired a new 2025 Ram 1500, which was accompanied by express and implied warranties. The vehicle was delivered with serious defects and nonconformities to warranty as to the electrical system, which impairs the use, value, and/or safety of the vehicle. Plaintiff alleges he presented the vehicle to Defendant, FCA US, LLC's (FCA) authorized service and repair facilities but, they were unable to conform the vehicle after a reasonable number of repair attempts. Plaintiff filed his Complaint on 4/14/26 alleging three causes of action: 1) breach of express warranty under the Song Beverly Consumer Warranty Act (SBA); 2) breach of implied warranty under the SBA; and 3) violation of the Civil Code § 1793.2(b).

FCA filed its Answer on 7/10/26 generally denying the allegations and asserting twenty-six affirmative defenses (AD).

Plaintiff, Kristopher Cortes, brings this demurrer to FCA's Answer arguing that the 4th AD for contributory negligence has been abrogated; that the 23rd AD is not legally cognizable; the 3rd, 5th through 20th, and 22nd through 25th Ads fail to state facts sufficient to constitute a defense and are uncertain (CCP §§ 430.20(a),(b), 430.30(b)); that the 2nd and 21st ADs violate CCP § 458 or are otherwise barred; and that the 26th AD is improper and uncertain.

Defendant, FCA, opposes the demurrer arguing that the Complaint is a bare-bones pleading but, Plaintiff demands facts be alleged to support each of FCA's defenses; and that in comparing the two pleadings demonstrates the defenses are sufficient to put Plaintiff on notice.

CCP §430.20(a), and (b) provide for a demurrer to an answer based on the failure to state sufficient facts to constitute a defense, and uncertainty. CCP §430.50(b) provides that a demurrer to an answer may be taken to the whole answer or to any one or more of the defenses set forth in the answer.

"A statement of any new matter constitutes a defense." (CCP § 431.30(b)(2).) This "new matter" is different than a simple denial of the allegations in the complaint. Rather, it is "some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:430.)

In this case, Plaintiff asserts that certain of Defendant's affirmative defenses fail to allege sufficient facts to constitute a defense and/or are uncertain. As to the subject affirmative defenses, Plaintiff asserts that no supporting facts have been alleged; and that the alleged defenses are invalid in the context of this lawsuit. Defendant disagrees.

In *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367. This case did not deal with a demurrer to an answer, but was an appeal from the granting of summary

judgment in favor of plaintiff. *FPI Development* reminds the Court of the purpose, historically, of demurring to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiff made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. The summary judgment statute, however, was amended in 1992, eliminating this requirement. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to defendant's affirmative defenses, a demurrer to an answer no longer accomplishes anything.

Here, Plaintiff asserts that certain of the subject affirmative defenses fail to state sufficient facts, are uncertain, improper or invalid in this SBA action. It is accurate that the subject affirmative defenses themselves are conclusory but, so are the allegations in the Complaint. Plaintiff takes issue with the lack of facts that are alleged but, a demurrer only addresses the face of the pleading. Whether there are alleged facts or not, the merits of the affirmative defenses are not before the court on this motion.

More importantly, a pleading need only give fair notice of the issues involved. (Weil & Brown, *supra.* at § 6:128, citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.) Here, Defendant's Answer gives Plaintiff fair notice of the affirmative defenses asserted. If Plaintiff wants further clarification of the affirmative defenses, she can propound Form Interrogatory No. 15.1, which would require Defendant to state all facts upon which it bases its affirmative defenses. Thus, the challenged affirmative defenses (AD) are sufficiently alleged for purposes of surviving a demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF MAYLETTE BROWN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Maylette Brown at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,961.00.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF JASMAINE GRABEN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Jasmine Graben at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,461.00.